

STATE OF NORTH CAROLINA
Department of Agriculture and Consumer Services

Refer ALL inquiries regarding this IFB to: Karen Moore, Procurement Manager	Invitation for Bids # 10-IFB-389713167-KMM
Using Agency: NCDA&CS Food Distribution	Bids will be publicly opened: March 28, 2022, at 2:00 PM ET
Requisition No.: N/A	Commodity No. and Description: 504000 Fresh Vegetables

EXECUTION

In compliance with this Invitation for Bids (IFB), and subject to all the conditions herein, the undersigned Vendor offers and agrees to furnish and deliver any or all items upon which prices are bid, at the prices set opposite each item within the time specified herein.

By executing this bid, the undersigned Vendor understands that false certification is a Class I felony and certifies that:

- this bid is submitted competitively and without collusion (G.S. 143-54),
- that none of its officers, directors, or owners of an unincorporated business entity has been convicted of any violations of Chapter 78A of the General Statutes, the Securities Act of 1933, or the Securities Exchange Act of 1934 (G.S. 143-59.2), and
- it is not an ineligible Vendor as set forth in G.S. 143-59.1.

Furthermore, by executing this bid, the undersigned certifies to the best of Vendor's knowledge and belief, that:

- it and its principals are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from covered transactions by any Federal or State department or agency.

As required by G.S. 143-48.5, the undersigned Vendor certifies that it, and each of its sub-Contractors for any Contract awarded as a result of this IFB, complies with the requirements of Article 2 of Chapter 84 of the NC General Statutes, including the requirement for each employer with more than 25 employees in North Carolina to verify the work authorization of its employees through the federal E-Verify system.

G.S. 133-32 and Executive Order 24 (2009) prohibit the offer to, or acceptance by, any State Employee associated with the preparing plans, specifications, estimates for public Contract; or awarding or administering public Contracts; or inspecting or supervising delivery of the public Contract of any gift from anyone with a Contract with the State, or from any person seeking to do business with the State. By execution of this bid response to the IFB, the undersigned certifies, for Vendor's entire organization and its employees or agents, that Vendor are not aware that any such gift has been offered, accepted, or promised by any employees or agents of Vendor's organization.

By executing this bid, Vendor certifies that it has read and agreed to the **INSTRUCTION TO VENDORS** and the **NORTH CAROLINA GENERAL TERMS AND CONDITIONS**. These documents can be accessed from the Ariba Sourcing Tool.

Failure to execute/sign bid prior to submittal may render bid invalid and it MAY BE REJECTED. Late bids cannot be accepted.

COMPLETE/FORMAL NAME OF VENDOR: <i>NC Farm to School Cooperative</i>		
STREET ADDRESS: <i>7602 Sadie Road</i>	P.O. BOX:	ZIP: <i>27542</i>
CITY & STATE & ZIP: <i>Kenley NC 27542</i>	TELEPHONE NUMBER: <i>252-237-1260</i>	TOLL FREE TEL. NO:
PRINCIPAL PLACE OF BUSINESS ADDRESS IF DIFFERENT FROM ABOVE (SEE INSTRUCTIONS TO VENDORS ITEM #11):		
PRINT NAME & TITLE OF PERSON SIGNING ON BEHALF OF VENDOR: <i>James Sharp President</i>		FAX NUMBER: <i>252-237-1260</i>
VENDOR'S AUTHORIZED SIGNATURE: <i>[Signature]</i>	DATE: <i>3-23-22</i>	E-MAIL: <i>jsharp@freshpic.com</i>

Bid Number: 10-IFB-389713167-KMM

NC Farm to School Cooperative

Vendor: _____

VALIDITY PERIOD

Offer shall be valid for at least 60 days from date of bid opening, unless otherwise stated here: _____ days, or if extended by mutual agreement of the parties. Any withdrawal of this offer shall be made in writing, effective upon receipt by the agency issuing this IFB.

BID ACCEPTANCE

If your bid is accepted, all provisions of this IFB, along with the written results of any negotiations, shall constitute the written agreement between the parties ("Contract"). The NORTH CAROLINA GENERAL TERMS AND CONDITIONS are incorporated herein and shall apply. Depending upon the Goods or Services being offered, other terms and conditions may apply, as mutually agreed.

FOR STATE USE ONLY: Offer accepted and Contract awarded this 1 day of April, 2023, as indicated on the attached certification by [Signature]
(Authorized Representative of Department of Agriculture and Consumer Services)

1.0	PURPOSE AND BACKGROUND	5
1.1	CONTRACT TERM.....	5
2.0	GENERAL INFORMATION	5
2.1	INVITATION FOR BID DOCUMENT	5
2.2	E-PROCUREMENT FEE	5
2.3	NOTICE TO VENDORS REGARDING IFB TERMS AND CONDITIONS.....	5
2.4	IFB SCHEDULE	6
2.5	BID QUESTIONS	6
2.6	BID SUBMITTAL	6
2.7	BID CONTENTS.....	7
2.8	ALTERNATE BIDS	7
2.9	DEFINITIONS, ACRONYMS, AND ABBREVIATIONS.....	7
3.0	METHOD OF AWARD AND BID EVALUATION PROCESS.....	8
3.1	METHOD OF AWARD	8
3.2	CONFIDENTIALITY AND PROHIBITED COMMUNICATIONS DURING EVALUATION.....	8
3.3	BID EVALUATION PROCESS.....	9
3.4	PERFORMANCE OUTSIDE THE UNITED STATES	9
3.5	INTERPRETATION OF TERMS AND PHRASES	10
4.0	REQUIREMENTS.....	10
4.1	PRICING	10
4.2	ESTIMATED QUANTITIES.....	10
4.3	PRODUCT IDENTIFICATION.....	10
4.4	TRANSPORTATION AND IDENTIFICATION	10
4.5	CONTRACT ADMINISTRATOR	10
4.6	HUB PARTICIPATION.....	11
4.7	REFERENCES	11
4.8	VENDOR'S REPRESENTATIONS	11
4.9	FINANCIAL STABILITY	11
4.10	INSURANCE	11
4.11	NC COVID-19 VACCINATION AND TESTING REQUIREMENT	11
5.0	PRODUCT SPECIFICATIONS	12
5.1	SPECIFICATIONS.....	12
	FOOD DISTRIBUTION RESPONSIBILITIES.....	12
5.2	VENDOR REQUIREMENTS.....	12
5.3	VENDOR RESPONSIBILITIES	12
5.4	DEVIATIONS.....	13
6.0	CONTRACT ADMINISTRATION.....	14
6.1	PROJECT MANAGER AND CUSTOMER SERVICE.....	14
6.2	POST AWARD PROJECT REVIEW MEETINGS.....	14
6.3	CONTINUOUS IMPROVEMENT	14
6.4	INVOICES	14
6.5	DISPUTE RESOLUTION	14

Bid Number: 10-IFB-389713167-KMM

Vendor: NC Farm to School Cooperative

6.8	PRODUCT RECALL	14
6.9	PRICE ADJUSTMENTS	14
6.10	CONTRACT CHANGES	15
6.11	ATTACHMENTS	15
ATTACHMENT A: PRICING FORM		16

1.0 PURPOSE AND BACKGROUND

The Department of Agriculture and Consumer Services, Food Distribution Division on behalf of NC Public Schools, is soliciting quotes to provide quality fresh fruits and vegetables, frozen fruits, and frozen meat to North Carolina Schools.

The North Carolina Farm to School Program was formed in 1997 by the N.C. Department of Agriculture & Consumer Services (NCDA&CS) Food Distribution and Marketing divisions and the U.S. Department of Defense Produce Merchandising Office (DOD) to develop a system for North Carolina schools across the state to receive fresh produce grown by local farmers as well other food items.

The intent of this solicitation is to award an Agency Specific Contract. The intent of this solicitation is to award an Agency Specific Contract.

1.1 CONTRACT TERM

This is an Agency Specific Term Contract beginning on the date of contract execution (the "Effective Date") through May 24, 2022.

In addition, the State reserves the right to extend a contract term after the last active term.

Bids shall be submitted in accordance with the terms and conditions of this IFB and any addenda issued hereto.

2.0 GENERAL INFORMATION

2.1 INVITATION FOR BID DOCUMENT

The IFB is comprised of the base IFB document, any attachments, and any addenda released before Contract award, which are incorporated herein by reference.

2.2 E-PROCUREMENT FEE

ATTENTION: This is an NC eProcurement solicitation facilitated by the Ariba Network. The E-Procurement fee may apply to this solicitation. See paragraph entitled ELECTRONIC PROCUREMENT of the North Carolina General Terms and Conditions.

General information on the E-Procurement Services can be found at: <http://eprocurement.nc.gov/>.

What is the Ariba Network?

The Ariba Network is a web-based platform that serves as a connection point for buyers and vendors. Vendors can log in to the Ariba Network to view purchase orders, respond to electronic requests for quotes, participate in Sourcing Events, and collaborate with buyers on contract documents.

For training on how to use the Sourcing Tool to view solicitations, submit questions, develop responses, upload documents, and submit offers to the State, Vendors should go to the following site:

<http://eprocurement.nc.gov/training/vendor-training>.

2.3 NOTICE TO VENDORS REGARDING IFB TERMS AND CONDITIONS

It shall be the Vendor's responsibility to read the Instructions to Vendors, the North Carolina General Terms and Conditions, all relevant exhibits and attachments, and any other components made a part of this IFB and comply with all requirements and specifications herein. Vendors also are responsible for obtaining and complying with all Addenda and other changes that may be issued in connection with this IFB.

If Vendors have questions, issues, or exceptions regarding any term, condition, or other component within this IFB, those must be submitted as questions in accordance with the instructions in the BID QUESTIONS Section. If the State determines that any changes will be made as a result of the questions asked, then such decisions will be communicated in the form of an IFB addendum. The State may also elect to leave open the possibility for later negotiation and amendment of specific provisions of the Contract that have been addressed during the question-and-answer period. Other than through this process or negotiation under 01 NCAC 05B.0503, the State rejects and will not be required to evaluate or consider any additional or modified terms and conditions submitted with Vendor's bid. This applies to any language appearing in or attached to the document as part of the Vendor's bid that purports to vary any terms and

conditions or Vendors' instructions herein or to render the bid non-binding or subject to further negotiation. Vendor's bid shall constitute a firm offer that shall be held open for the period required herein ("Validity Period" above).

By execution and delivery of this IFB Response, the Vendor agrees that any additional or modified terms and conditions, whether submitted purposely or inadvertently, shall have no force or effect, and will be disregarded. Noncompliance with, or any attempt to alter or delete, this paragraph shall constitute sufficient grounds to reject Vendor's bid as nonresponsive. The State may exercise its discretion to consider Vendor proposed modifications.

2.4 IFB SCHEDULE

The table below shows the *intended* schedule for this IFB. The State will make every effort to adhere to this schedule.

Event	Responsibility	Date and Time
Issue IFB	State	March 17, 2022
Submit Written Questions	Vendor	March 23, 2022, 1:00PM ET
Provide Responses to Questions	State	March 24, 2022, 2:00PM ET
Submit Bids	Vendor	March 28, 2022, 2:00PM ET
Contract Award	State	TBD

2.5 BID QUESTIONS

Upon review of the IFB documents, Vendors may have questions to clarify or interpret the IFB in order to submit the best bid possible. To accommodate the Bid Questions process, Vendors shall submit any such questions by the "Submit Written Questions" date and time provided in the IFB SCHEDULE Section above, unless modified by Addendum.

Questions related to the content of the solicitation, or the procurement process should be directed to the person on the title page of this document via the Sourcing Tool's message board by the date and time specified in the IFB SCHEDULE Section of this IFB. Vendors will enter "IFB # 10-IFB-389713167-KMM – Questions" as the subject of the message. Question submittals should include a reference to the applicable IFB section. This is the only manner in which questions will be received.

Questions or issues related to using the Sourcing Tool itself can be directed to the North Carolina eProcurement Help Desk at 888-211-7440, Option 2. Help Desk representatives are available Monday through Friday from 7:30 AM ET to 5:00 PM ET.

Questions received prior to the submission deadline date, the State's response, and any additional terms deemed necessary by the State will be posted in the Sourcing Tool in the form of an addendum and shall become an Addendum to this IFB. No information, instruction or advice provided orally or informally by any State personnel, whether made in response to a question or otherwise in connection with this IFB, shall be considered authoritative or binding. Vendors shall rely *only* on written material contained in an Addendum to this IFB.

2.6 BID SUBMITTAL

IMPORTANT NOTE: This is an absolute requirement. Vendor shall bear the risk of late submission due to unintended or unanticipated delay. It is the Vendor's sole responsibility to ensure its bid has been received as described in this IFB by the specified time and date of opening. Failure to submit a bid in strict accordance with instructions provided shall constitute sufficient cause to reject a Vendor's bid(s). Solicitation responses are subject to Sealed Bidding requirements.

Vendor's bids for this procurement must be submitted through the Sourcing Tool. For training on how to use the Sourcing Tool to view solicitations, submit questions, develop responses, upload documents, and submit offers to the State, Vendors should go to the following site: <https://eprocurement.nc.gov/training/vendor-training>

Questions or issues related to using the Sourcing Tool itself can be directed to the North Carolina eProcurement Help Desk at 888-211-7440, Option 2. Help Desk representatives are available Monday through Friday from 7:30 AM EST to 5:00 PM EST.

Tips for Using the Sourcing Tool

1. Vendors should review available training and confirm that they are able to access the Sourcing Event, enter responses, and upload files well in advance of the date and time response are due to allow sufficient time to seek assistance from the North Carolina eProcurement Help Desk.
2. Vendors may submit their responses early to make sure there are no issues, and then submit a revised response any time prior to the response due date and time. The State will only review the most recent response.
3. Vendors should respond to all relevant sections of the Sourcing Event. Certain questions or items are required in order to submit a response and are denoted with an asterisk. The Sourcing Tool will not allow a response to be submitted unless all required items are completed. The Sourcing Tool will provide error messages to help identify any required information that is missing when response is submitted.
4. Simply saving your response in the Sourcing Tool is not the same as submitting your response to the State. Vendors should make sure they complete the submission process and receive a message that their response was successfully submitted.

2.7 BID CONTENTS

Vendors shall provide responses to all questions and complete all attachments for this IFB that require the Vendor to provide information and upload them to the Sourcing Event in the Sourcing Tool. Vendor may not be able to submit its response in the Sourcing Tool unless all required items are addressed. Vendors shall provide authorized signatures where requested. Failure to provide all required items, or Vendor's submission of incomplete items, may result in the State rejecting Vendor's bid, in the State's sole discretion.

Vendors shall upload the following items and attachments in the Sourcing Tool:

- a) Completed and signed version of EXECUTION PAGES, along with the body of the IFB.
- b) Signed receipt pages of any addenda released in conjunction with this IFB, if required to be returned.
- c) Vendor Response
- d) Completed version of ATTACHMENT A: PRICING
- e) Completed and signed version of ATTACHMENT D: HUB SUPPLEMENTAL VENDOR INFORMATION
- f) Completed and signed version of ATTACHMENT E: CUSTOMER REFERENCE FORM
- g) Completed and signed version of ATTACHMENT F: LOCATION OF WORKERS UTILIZED BY VENDOR
- h) Completed and signed version of ATTACHMENT G: CERTIFICATION OF FINANCIAL CONDITION
- i) Completed and signed version of ATTACHMENT I: ACKNOWLEDGMENT OF COVID-19 VACCINATION AND TESTING POLICY

2.8 ALTERNATE BIDS

Unless provided otherwise in this IFB, Vendor may submit alternate bids for comparable Goods, various methods or levels of Service(s), or that propose different options. Alternate bids must specifically identify the IFB requirements and advantage(s) addressed by the alternate bid. Each bid must be for a specific set of Goods and Services and must include specific pricing. Each bid must be complete and independent of other bids offered. If a Vendor chooses to respond with various offerings, Vendor shall follow the specific instructions for uploading Alternate Bids in the Sourcing Tool

2.9 DEFINITIONS, ACRONYMS, AND ABBREVIATIONS

Relevant definitions for this IFB are provided in 01 NCAC 05A .0112 and in the Instructions to Vendors found Sourcing Tool, which are incorporated herein by this reference.

The following definitions, acronyms, and abbreviations are also relevant to this IFB:

- a) **AGENCY SPECIFIC TERM CONTRACT:** A contract generally intended to cover all normal requirements for a commodity for a specified period of time based on estimated quantities for a single entity.
- b) **BAFO:** Best and Final Offer, submitted by a Vendor to alter its initial bid, made in response to a request by the issuing agency.
- c) **BUYER:** The employee of the State or Other Eligible Entity that places an order with the Vendor.
- d) **CONTRACT ADMINISTRATOR:** Representative of NCDA&CS who will administer the contract for the State after award.
- e) **CONTRACT LEAD:** Representative of the NCDA&CS who corresponds with potential Vendors in order to identify and contract with that Vendor providing the greatest benefit to the State and who will administer the contract for the State.
- f) **E-PROCUREMENT SERVICES:** The program, system, and associated services through which the State conducts electronic procurement.
- g) **IFB:** Invitation for Bids.
- h) **NCDA&CS:** North Carolina Department of Agriculture and Consumer Services
- i) **QUALIFIED BID:** A responsive bid submitted by a responsible Vendor.
- j) **STATE:** The State of North Carolina, including any of its sub-units recognized under North Carolina law.
- k) **STATE AGENCY:** Any of the more than 400 sub-units within the executive branch of the State, including its departments, boards, commissions, institutions of higher education and other institutions.
- l) **VENDOR:** Supplier, bidder, proposer, company, firm, corporation, partnership, individual or other entity submitting a response to an Invitation for Bids.

3.0 METHOD OF AWARD AND BID EVALUATION PROCESS

3.1 METHOD OF AWARD

North Carolina G.S. 143-52 provides a general list of criteria the State shall use to award contracts, as supplemented by the additional criteria herein. The Goods or Services being procured shall dictate the application and order of criteria; however, all award decisions shall be in the State's best interest.

All responsive bids will be reviewed, and award or awards will be based on the responsive bid(s) offering the lowest price that meets the specifications set out herein.

While the intent of this IFB is to award a Contract(s) to a single Vendor for all line items, the State reserves the right to make separate awards to different Vendors for one or more line items, to not award one or more line items or to cancel this IFB in its entirety without awarding a Contract, if it is considered to be most advantageous to the State to do so.

If a Vendor selected for award is determined by the State to be a non-resident of North Carolina, all responsive bids will be reviewed to determine if any of them were submitted by a North Carolina resident Vendor who requested an opportunity to match the price of the winning bid, pursuant to Executive Order #50 and G.S. 143-59 (for more information, please refer to ATTACHMENT H: VENDOR REQUEST FOR EXECUTIVE ORDER #50 PRICE MATCHING. If such bid(s) are identified, the State will then determine whether any such bid falls within the price-match range, and, if so, make a Contract award in accordance with the process that implements G.S. 143-59 and Executive Order #50.

The State reserves the right to waive any minor informality or technicality in bids received.

3.2 CONFIDENTIALITY AND PROHIBITED COMMUNICATIONS DURING EVALUATION

While this IFB is under evaluation, the responding Vendor, including any subcontractors and suppliers, is prohibited from engaging in conversations intended to influence the outcome of the evaluation. See the Paragraph of the Instructions To Vendors Entitled Confidential Information.

3.3 BID EVALUATION PROCESS

Only responsive submissions will be evaluated.

The State will conduct an evaluation of responsive Bids, as follows:

Bids will be received according to the method stated in the Bid Submittal section above.

All bids must be received by the issuing agency not later than the date and time specified in the IFB SCHEDULE Section above, unless modified by Addendum. Vendors are cautioned that this is a request for offers, not an offer or request to contract, and the State reserves the unqualified right to reject any and all offers at any time if such rejection is deemed to be in the best interest of the State.

At the date and time provided in the IFB SCHEDULE Section above, unless modified by Addendum, the bids from each responding Vendor will be opened publicly and the name of the Vendor and total cost offered may be announced. Interested parties are cautioned that these costs and their components are subject to further evaluation for completeness and correctness and therefore may not be an exact indicator of a Vendor's pricing position.

If negotiation is anticipated under 01 NCAC 05B.0503, pricing may not be public until award.

At their option, the evaluators may request oral presentations or discussions with any or all Vendors for clarification or to amplify the materials presented in any part of the bid. Vendors are cautioned, however, that the evaluators are not required to request presentations or other clarification—and often do not. Therefore, all bids should be complete and reflect the most favorable terms available from the Vendor. Prices bid cannot be altered or modified as part of a clarification.

Bids will generally be evaluated, based on completeness, content, cost, and responsibility of the Vendor to supply the requested Goods and Services. Specific evaluation criteria are listed in Section 3.1 METHOD OF AWARD.

Upon completion of the evaluation process, the State will make Award(s) based on the evaluation and post the award(s) to IPS under the IFB number for this solicitation. Award of a Contract to one Vendor does not mean that the other bids lacked merit, but that, all factors considered, the selected bid was deemed most advantageous and represented the best value to the State.

The State reserves the right to negotiate with one or more Vendors, or to reject all original offers and negotiate with one or more sources of supply that may be capable of satisfying the requirement, and in either case to require Vendor to submit a Best and Final Offer (BAFO) based on discussions and negotiations with the State.

3.4 PERFORMANCE OUTSIDE THE UNITED STATES

Vendor shall complete ATTACHMENT F: LOCATION OF WORKERS UTILIZED BY VENDOR. In addition to any other evaluation criteria identified in this IFB, the State may also consider, for purposes of evaluating proposed or actual contract performance outside of the United States, how that performance may affect the following factors to ensure that any award will be in the best interest of the State:

- a) Total cost to the State
- b) Level of quality provided by the Vendor
- c) Process and performance capability across multiple jurisdictions
- d) Protection of the State's information and intellectual property
- e) Availability of pertinent skills
- f) Ability to understand the State's business requirements and internal operational culture
- g) Particular risk factors such as the security of the State's information technology
- h) Relations with citizens and employees
- i) Contract enforcement jurisdictional issues

Bid Number: 10-IFB-389713167-KMM

Vendor: _____

3.5 INTERPRETATION OF TERMS AND PHRASES

This IFB serves two functions: (1) to advise potential Vendors of the parameters of the solution being sought by the State; and (2) to provide (together with other specified documents) the terms of the Contract resulting from this procurement. The use of phrases such as "shall," "must," and "requirements" are intended to create enforceable contract conditions. In determining whether bids should be evaluated or rejected, the State will take into consideration the degree to which Vendors have proposed or failed to propose solutions that will satisfy the State's needs as described in the IFB. Except as specifically stated in the IFB, no one requirement shall automatically disqualify a Vendor from consideration. However, failure to comply with any single requirement may result in the State exercising its discretion to reject a bid in its entirety.

4.0 REQUIREMENTS

This Section lists the requirements related to this IFB. By submitting a bid, the Vendor agrees to meet all stated requirements in this Section, as well as any other specifications, requirements, and terms and conditions stated in this IFB. If a Vendor is unclear about a requirement or specification or believes a change in a requirement would allow for the State to receive a better bid, the Vendor is encouraged to submit these items in the form of a question during the question-and-answer period in accordance with the Bid Questions Section above.

4.1 PRICING

Bid price shall include the total price for each item, including shipping, delivery, handling, administrative and other similar fees. Assembly and set-up at the State's location shall be shown as an additional line price for each applicable item. Complete ATTACHMENT A: PRICING FORM. The pricing provided in ATTACHMENT A, or resulting from any negotiations, is incorporated herein and shall become part of any resulting Contract.

4.2 ESTIMATED QUANTITIES

The quantities indicated herein are annual estimates only and are provided for informational purposes based on the anticipated usage. No maximum or minimum quantities are guaranteed. It shall be understood and agreed that the State may purchase more or less than the estimated quantities during the contract period. The State reserves the right to increase or decrease the quantities as needed. The State shall not be obligated to purchase more than its normal requirements. The State will be responsible only for items requested and received.

4.3 PRODUCT IDENTIFICATION

SUITABILITY FOR INTENDED USE

Vendors are requested to offer only items directly complying with the specifications herein or comparable items which will provide the equivalent capabilities, features and diversity called for herein. The State reserves the right to evaluate all bids for suitability for the required use and to award the one best meeting requirements and considered to be in the State's best interest.

4.4 TRANSPORTATION AND IDENTIFICATION

The Vendor shall deliver Free-On-Board (FOB) Destination to any requested location within the State of North Carolina with all transportation costs and fees included in the total bid price.

Salisbury Warehouse
160 Circle M Drive
Salisbury, NC 28147

Creedmoor Warehouse
1015 Food Distribution Drive
Creedmoor, NC 27522

4.5 CONTRACT ADMINISTRATOR

Ted Fogleman, or designee, of the Food Distribution Division, is the contact person for the Department *only after an award has been made*. He may be reached at (919) 964-6120 or Ted.Fogleman@ncagr.gov

4.6 HUB PARTICIPATION

Pursuant to North Carolina General Statute G.S. 143-48, it is State policy to encourage and promote the use of small, minority, physically handicapped, and women contractors in purchasing Goods and Services. As such, this IFB will serve to identify those Vendors that are minority owned or have a strategic plan to support the State's Historically Underutilized Business program by meeting or exceeding the goal of 10% utilization of diverse firms as 1st or 2nd tier subcontractors. Vendor shall complete ATTACHMENT D: HUB SUPPLEMENTAL VENDOR INFORMATION.

4.7 REFERENCES

Vendors shall upload to the Sourcing Tool at least three (3) references, using ATTACHMENT E: CUSTOMER REFERENCE FORM, for which your company has supplied the exact model of equipment offered. The State *may* contact these users to determine quality level of the offered equipment; as well as, but not limited to user satisfaction with Vendor performance. Information obtained *may* be considered in the evaluation of the bid.

4.8 VENDOR'S REPRESENTATIONS

If Vendor's bid results in an award, Vendor agrees that it will not enter any agreement with a third party that may abridge any rights of the State under the Contract. If any Services, deliverables, functions, or responsibilities not specifically described in this solicitation are required for Vendor's proper performance, provision and delivery of the Service and deliverables under a resulting Contract, or are an inherent part of or necessary sub-task included within such service, they will be deemed to be implied by and included within the scope of the contract to the same extent and in the same manner as if specifically described in the Contract. Unless otherwise expressly provided herein, Vendor will furnish all of its own necessary management, supervision, labor, facilities, furniture, computer and telecommunications equipment, software, supplies and materials necessary for the Vendor to provide and deliver the Services and/or other Deliverables.

4.9 FINANCIAL STABILITY

As a condition of contract award, the Vendor must certify that it has the financial capacity to perform and to continue to perform its obligations under the Contract; that Vendor has no constructive or actual knowledge of an actual or potential legal proceeding being brought against Vendor that could materially adversely affect performance of this Contract; and that entering into this Contract is not prohibited by any contract, or order by any court of competent jurisdiction.

Each Vendor shall certify it is financially stable by completing the ATTACHMENT G: CERTIFICATION OF FINANCIAL CONDITION. The State is requiring this certification to minimize potential performance issues from Contracting with a Vendor that is financially unstable. This Certification shall be deemed continuing, and from the date of the Certification to the expiration of the Contract, the Vendor shall notify the State within thirty (30) days of any occurrence or condition that materially alters the truth of any statement made in this Certification.

4.10 INSURANCE

During the term of the contract, the contractor at its sole cost and expense shall provide commercial insurance of such type and with such terms and limits as may be reasonably associated with the contract. As a minimum, the contractor shall provide and maintain insurance as per Paragraph 15 of the Terms and Conditions.

4.11 NC COVID-19 VACCINATION AND TESTING REQUIREMENT

Executive Order 224, signed by Governor Cooper on July 30, 2021, requires all state employees and contractors who may enter facilities at Cabinet Agencies or other participating State Agencies to provide proof of full vaccination or a negative Covid test result within the last seven (7) days. Contractors must follow the requirements of this policy to ensure that their employees are: (1) fully vaccinated or tested weekly, and (2) wearing face coverings where required at Agency facilities. Each Vendor shall certify its acknowledgement and intent to comply with this policy by completing ATTACHMENT I: ACKNOWLEDGMENT OF COVID-19 VACCINATION AND TESTING POLICY.

5.0 PRODUCT SPECIFICATIONS

5.1 SPECIFICATIONS

FOOD DISTRIBUTION RESPONSIBILITIES

1. Notify the Vendor of the quantities 2-4 weeks in advance of the delivery.
2. Coordinating the delivery of fresh produce/food items from the Vendor. Coordinating the pick-up of fresh produce/food items if the Department makes the pick-up as described in 4.3.
3. The State reserves the right to modify pick-up dates, based on seasonality (if product comes in sooner or later than date stated in IFB).
4. Schools shall have twenty-four (24) hours from time of delivery to report any problem to NCDA&CS. Will notify the vendor of any issues.
5. Invoicing to schools and payments to vendor.

5.2 VENDOR REQUIREMENTS

1. Vendor shall provide current proof of GAP third party audit with Bid, if applicable.
2. Vendor shall provide current proof of HACCP or HARPC third party audit with Bid, if applicable.
3. All meat products must be harvested and packaged in a USDA or state inspected facility. Packaging must bear mark of inspection.

5.3 VENDOR RESPONSIBILITIES

1. All fresh produce shipped to the Farm to School program will be required to have a USDA fruit and vegetable inspection and meet the minimum grade of a US Number 1 prior to shipment.
2. NCDA&CS prefers "NC Goodness Grows" membership.
3. All produce is to be the current season's harvest unless otherwise noted in the description.
4. Product shall be identified by label indicating the farm from which it came. If the cases of the product do not have the name of the farm it came from, the product will be refused.
5. Product shall be held at the proper temperature as noted in product specifications to begin the cold chain and the cold chain shall not be broken.
6. Notification of quantities shall be provided to Vendor a minimum of two weeks and a maximum of four weeks before required delivery/pickup from the Vendor. NCDA&CS and NC Schools reserve the right to change the quantity of produce indicated herein within seventy-two (72) hours of delivery/pickup from Vendor with no change in the price offered.
7. In the event the Vendor is unable to fulfill the contract, notification shall be submitted to the NCDA&CS Marketing Specialist in table listed below immediately prior to delivery/pickup or by 12:00 noon on the day before scheduled delivery/pickup of the product.
8. In the event of a product recall of a delivered item, the successful Vendor will immediately notify NCDA&CS Food Distribution.
9. The successful Vendor shall have produce delivered/picked up by designated date. If produce will be picked up, produce shall be ready at the pickup point designated by Food Distribution.
10. Exact quantities cannot be guaranteed by NCDA&CS at time of award. Quantities are our best estimates for the quarter. Schools will submit their orders after award.

VENDOR'S RESPONSE

Item #	Specifications	Product/Service Offered Meets Specification
	Have all specifications been reviewed?	☒ YES ☐ NO
	Vendor to meet all vendor requirements.	☒ YES ☐ NO
	Vendor to meet all vendor responsibilities	☒ YES ☐ NO

Marketing Specialist	Commodities	Phone Number
Tommy Fleetwood	Broccoli crowns, romaine lettuce, collards, cabbage, kale	252-331-4773
Kevin Hardison	Watermelons, cantaloupes	919-707-3123
Michele Roberts	Apples, tomatoes, apple slices, Asian Pear, peaches, cucumbers, frozen ground beef	828-253-1691
Heather Barnes	Sweet potatoes, strawberries, frozen blueberry and blueberry blend products	919-707-3127

5.4 DEVIATIONS

The nature of all deviations from the Specifications listed herein shall be clearly described by the Vendor. Otherwise, it will be considered that items offered by the Vendor are in strict compliance with the Specifications provided herein, and the successful Vendor shall be required to supply conforming goods. Deviations shall be explained in detail below or on an attached sheet. However, no implication is made or intended by the State that any deviation will be acceptable. Do not list objections to the North Carolina General Terms and Conditions in this section.

N/A

6.0 CONTRACT ADMINISTRATION

All Contract Administration requirements are conditioned on an award resulting from this solicitation. This information is provided for the Vendor's planning purposes

6.1 PROJECT MANAGER AND CUSTOMER SERVICE

The Vendor shall be required to designate and make available to the State a project manager. The project manager shall be the State's point of contact for Contract related issues and issues concerning performance, progress review, scheduling, and service.

6.2 POST AWARD PROJECT REVIEW MEETINGS

The Vendor, at the request of the State, shall be required to meet periodically monthly, if necessary with the State for Project Review meetings. The purpose of these meetings will be to review project progress reports, discuss Vendor and State performance, address outstanding issues, review problem resolution, provide direction, evaluate continuous improvement and cost saving ideas, and discuss any other pertinent topics.

6.3 CONTINUOUS IMPROVEMENT

The State encourages the Vendor to identify opportunities to reduce the total cost the State. A continuous improvement effort consisting of various ideas to enhance business efficiencies as performance progresses.

6.4 INVOICES

Vendor shall invoice the Purchasing Agency. The standard format for invoicing shall be Single Invoices meaning that the Vendor shall provide the Purchasing Agency with an invoice for each order. Invoices shall include detailed line item information to allow Purchasing Agency to verify pricing at point of receipt matches the correct price from the original date of order. At a minimum, the following fields shall be included on all invoices:

Vendor's Billing Address, Customer Account Number, NC Contract Number, Order Date, Buyer's Order Number, Manufacturer Part Numbers, Vendor Part Numbers, Item Descriptions, Price, Quantity, and Unit of Measure.

INVOICES MAY NOT BE PAID UNTIL AN INSPECTION HAS OCCURRED AND THE GOODS ACCEPTED.

6.5 DISPUTE RESOLUTION

During the performance of the Contract, the Parties agree that it is in their mutual interest to resolve disputes informally. Any claims by the Vendor shall be submitted in writing to the State's Contract Manager for resolution. Any claims by the State shall be submitted in writing to the Vendor's Project Manager for resolution. The Parties shall agree to negotiate in good faith and use all reasonable efforts to resolve such dispute(s).

During the time the Parties are attempting to resolve any dispute, each shall proceed diligently to perform their respective duties and responsibilities under this Contract. The Parties will agree on a reasonable amount of time to resolve a dispute. If a dispute cannot be resolved between the Parties within the agreed upon period, either Party may elect to exercise any other remedies available under the Contract, or at law. This provision, when agreed in the Contract, shall not constitute an agreement by either party to mediate or arbitrate any dispute.

6.8 PRODUCT RECALL

Vendor expressly assumes full responsibility for prompt notification to the Buyer listed on the face of this IFB of any product recall in accordance with the applicable state or federal regulations. The Vendor shall support the State, as necessary, to promptly replace any such products, at no cost to the State.

6.9 PRICE ADJUSTMENTS

Prices proposed by the Vendor shall be firm against any increase for 90 days from the effective date of the Contract.

Bid Number: 10-IFB-389713167-KMM

Vendor: **NC Farm to School Cooperative**

Price increase requests shall be submitted in writing to the Contract Lead, which shall include the reason(s) for the request and contain supporting documentation for the need. Price increases will be negotiated and agreed to by both the State and Vendor in advance of any price increase going into effect. The State is not obligated to accept pricing adjustments or increases and reserves the right to accept or reject them in part or in whole. Price de-escalation or decreases may be requested by the State at any time.

It is understood and agreed that orders will be shipped at the established Contract prices in effect on the date an order is placed. Invoicing that deviate from this provision may result in Contract to cancellation.

6.10 CONTRACT CHANGES

Contract changes, if any, over the life of the Contract shall be implemented by contract amendments agreed to in writing by the State and Vendor.

6.11 ATTACHMENTS

All attachments to this IFB are incorporated herein and shall be submitted by responding in the Sourcing Tool. These attachments can be found at the following Vendor Forms link for reference purposes only:
<https://ncadmin.nc.gov/documents/vendor-forms>

The remainder of this page is intentionally left blank

ATTACHMENT A: PRICING FORM

Vendor is a member of "NC Goodness Grows" [check applicable box]

☐ YES ☐ NO

FURNISH AND DELIVER:

ITEM	DESCRIPTION	QTY.	UNIT	UNIT PRICE	EXTENDED PRICE
1.	<u>Broccoli Crowns Fresh</u> crowns, top iced, eighteen (18) pound case. Quality: US No. 1, handling temperatures 32 degrees F from harvest to final destination. <u>Delivery:</u> <u>300</u> cases on <u>May 13, 2022.</u> <u>Delivery:</u> <u>300</u> cases on <u>May 20, 2022.</u>	600	Cases	\$ <u>20²⁵</u>	\$ <u>12,150⁰⁰</u>
2.	<u>Romaine Lettuce</u> Packed: 24 heads per box. Quality: US No. 1, stored at 40 degrees. <u>Delivery:</u> <u>Romaine 200</u> boxes on <u>April 22, 2022.</u> <u>Delivery:</u> <u>Romaine 200</u> boxes on <u>April 29, 2022.</u> <u>Delivery:</u> <u>Romaine 200</u> boxes on <u>May 6, 2022.</u> <u>Delivery:</u> <u>Romaine 200</u> boxes on <u>May 13, 2022.</u> <u>Delivery:</u> <u>Romaine 200</u> boxes on <u>May 20, 2022.</u>	1,000	Boxes	\$ <u>18⁵⁰</u>	\$ <u>18,500⁰⁰</u>

ITEM	DESCRIPTION	QTY.	UNIT	UNIT PRICE	EXTENDED PRICE
3.	<u>Strawberries</u> <u>Packed:</u> 8/one pound clam shells per flat. <u>Quality:</u> Variety will be anything but a Sweet Charlie, US No. 1, picked ripe, handling temperatures 34-38 degrees F. from harvest to final destination. <u>Delivery:</u> Strawberries: <u>6,000</u> flats on <u>April 22, 2022, and April 25, 2022.</u> <u>Delivery:</u> Strawberries: <u>5,000</u> flats on <u>April 29, 2022, and May 2, 2022.</u> <u>Delivery:</u> Strawberries: <u>5,000</u> flats on <u>May 6, 2022, and May 9, 2022.</u> <u>Delivery:</u> Strawberries: <u>3,000</u> flats on <u>May 13, 2022, and May 16, 2022.</u> <u>Delivery:</u> Strawberries: <u>2,000</u> flats on <u>May 20, 2022, and May 23, 2022.</u>	21,000	Flats	\$ <u>17⁰⁰</u>	\$ <u>357,000⁰⁰</u>
4.	<u>Blueberries:</u> <u>Packed:</u> 12/one-pint clam shells per flat. <u>Quality:</u> No. 1, handling temperatures 34-38 degrees F from harvest to final destination. <u>Delivery/Pickup:</u> Blueberries: <u>800</u> flats on <u>May 20, 2022.</u>	800	Flats	\$ <u>30⁰⁰</u>	\$ <u>24,000⁰⁰</u>
TOTAL ALL PRODUCTS					\$ <u>411,650⁰⁰</u>

Bid Number: 10-IFB-389713167-KMM

Vendor: NC Farm to School Cooperative

ITEM	DESCRIPTION	DELIVERY/PICKUP	EXTENDED PRICE
	SHIPPING COSTS		
	For evaluation purposes, please state one-time delivery cost for all items for dates listed.		
		April 22, 2022	\$ 230 ⁰⁰
		April 25, 2022	\$ 160 ⁰⁰
		April 29, 2022	\$ 230 ⁰⁰
		May 2, 2022	\$ 160 ⁰⁰
		May 6, 2022	\$ 230 ⁰⁰
		May 9, 2022	\$ 160 ⁰⁰
		May 13, 2022	\$ 335 ⁰⁰
		May 16, 2022	\$ 160 ⁰⁰
		May 20, 2022	\$ 355 ⁰⁰
		May 23, 2022	\$ 160 ⁰⁰
TOTAL ALL SHIPPING			\$ 2,180 ⁰⁰

TOTAL ALL PRODUCTS	\$ 411,650 ⁰⁰
TOTAL ALL SHIPPING	\$ 2,180 ⁰⁰
GRAND TOTAL	\$ 413,830 ⁰⁰



ATTACHMENT E: CUSTOMER REFERENCE TEMPLATE

Solicitation #: 10-IFB-389713167-KMM

Vendor Name: NC Farm to School Cooperative

Instructions: Vendor shall use this template to submit three (3) customer references with its offer.

Name of Customer Organization:	Sampson County School Nutrition
Customer Reference Name:	April Jordan
Customer Reference Address:	437 Roura Rd Clinton NC 28328
Customer Reference Email:	ajordan@sampson.k12.nc.us
Start Date:	11-4-2021
End Date:	1-20-2022
Explanation of contract, service agreement, or type of products and quantity provided to the organization:	Fresh and Value Added produce and frozen ground beef

Name of Customer Organization:	Union County School Nutrition
Customer Reference Name:	Denise Lamar
Customer Reference Address:	407 N Main St Monroe NC 28112
Customer Reference Email:	denise.lamar@ucps.k12.nc.us
Start Date:	11-4-2021
End Date:	1-20-2022
Explanation of contract, service agreement, or type of products and quantity provided to the organization:	Fresh and Value added produce and frozen ground beef

Name of Customer Organization:	Yadkin County Schools Nutrition
Customer Reference Name:	Jayne Robertson
Customer Reference Address:	121 Washington Street Yadkinville NC 27055
Customer Reference Email:	Jayne.Robertson@yadkin.k12.nc.us
Start Date:	11-4-2021
End Date:	1-20-2022
Explanation of contract, service agreement, or type of products and quantity provided to the organization:	Fresh and Value added produce and frozen ground beef

- B. **ATTACH A COPY OF VENDOR'S MOST RECENT FILINGS WITH THE NORTH CAROLINA SECRETARY OF STATE** (such as Vendor's Certificate of Authority, Annual Report or such other filing that discloses a North Carolina business address for the Vendor).

OR (check the box below)

☒ Vendor certifies that its business is **not** required to make filings with the North Carolina Secretary of State.

If the box is checked, state the reason why no filings are required:

NOTICE: The Price Matching Opportunity will only be given to a Vendor that fully completes this attachment (i.e., all information shall be provided, all supporting documents shall be attached, and signature from an authorized representative of the Vendor shall be provided) and demonstrates its qualification for the Price Matching Opportunity. A certification shall be submitted with each bid for which Vendor seeks a price matching opportunity.

Certification of **NC Farm to School Cooperative** (name of resident Vendor).

The undersigned hereby certifies that he or she has read this certification, that all information provided in Part I and Part II above is true and accurate and that he or she is an officer, member, partner, owner, or other such managing employee of the Vendor (the "Authorized Representative") that is authorized to execute this certification and to bind the Vendor to the certifications, statements, and agreements herein.

Name of Authorized Representative: _____

Signature: _____

Title: _____

Date: _____

James Sharp

[Signature]

President

3-23-22

HISTORICALLY UNDERUTILIZED BUSINESSES

Supplemental Vendor Information

Solicitation # 10-IFB 389713162 - KMM

Vendor Name: NC Farm to School Cooperative

Historically Underutilized Businesses (HUBs) consist of minority, women and disabled business firms that are at least fifty-one percent owned and operated by an individual(s) of the categories. Also included in this category are disabled business enterprises and non-profit work centers for the blind and severely disabled.

Pursuant to G.S. 143B-1361(a), 143-48 and 143-128.4, the State invites and encourages participation in this procurement process by businesses owned by minorities, women, disabled, disabled business enterprises and non-profit work centers for the blind and severely disabled. This includes utilizing individual(s) of the categories as subcontractors to perform the required functions in this solicitation documents.

The Vendor shall respond to questions below, as applicable.

1. Is Vendor a NC-certified HUB? ☐ Yes ☒ No

If yes, provide vendor #: _____

If no, does vendor qualify for certification as HUB? ☐ Yes ☒ No

Vendors that check "yes" will be referred to the HUB Office for assistance in acquiring certification.

2. For *Commodity* procurements, are you using Tier 2 suppliers? ☐ Yes ☒ No
If yes, then provide the following information:

Company Name	Company Address	Website Address	Contact name	Contact email	Contact Phone	NC HUB certified?	Percentage of total bid price

3. For *Services* procurements, are you using Subcontractors to perform any of the services being procured under this solicitation? ☐ Yes ☒ No

If yes, then provide the following information:

Company Name	Company Address	Website Address	Contact name	Contact email	Contact Phone	NC HUB certified?	Percentage of total proposal price



ATTACHMENT F: LOCATION OF WORKERS UTILIZED BY VENDOR

Solicitation #:

1D-IFB-389713167-KMM

Vendor Name:

NC Farm to School Cooperative

In accordance with NC General Statute G.S. 143-59.4, Vendor shall detail the location(s) at which performance will occur, as well as the manner in which it intends to utilize resources or workers outside of the United States in the performance of The Contract.

Vendor shall complete items 1 and 2 below.

1. Will any work under this Contract be performed outside of the United States? ☐ YES ☒ NO

If "YES":

a) List the location(s) outside of the United States where work under the Contract will be performed by the Vendor, any subcontractors, employees, or any other persons performing work under the Contract.

b) Specify the manner in which the resources or workers will be utilized:

2. Where within the United States will work be performed?

North Carolina

NOTES:

1. The State will evaluate the additional risks, costs, and other factors associated with the utilization of workers outside of the United States prior to making an award.
2. Vendor shall provide notice in writing to the State of the relocation of the Vendor, employees of the Vendor, subcontractors of the Vendor, or other persons performing services under the Contract to a location outside of the United States.
3. All Vendor or subcontractor personnel providing call or contact center services to the State of North Carolina under the Contract shall disclose to inbound callers the location from which the call or contact center services are being provided.



ATTACHMENT G: CERTIFICATION OF FINANCIAL CONDITION

Solicitation #: 10-IFB-389713167-KMM

Vendor Name: NC Farm to School Cooperative

The undersigned hereby certifies that: [check all applicable boxes]

☒ The Vendor is in sound financial condition and, if applicable, has received an unqualified audit opinion for the latest audit of its financial statements.

Date of latest audit: 12-31-2020 (If no audit within past 18 months, explain reason below.)

☒ The Vendor has no outstanding liabilities, including tax and judgment liens, to the Internal Revenue Service or any other government entity.

☒ The Vendor is current in all amounts due for payments of federal and state taxes and required employment-related contributions and withholdings.

☒ The Vendor is not the subject of any current litigation or findings of noncompliance under federal or state law.

☒ The Vendor has not been the subject of any past or current litigation, findings in any past litigation, or findings of noncompliance under federal or state law that may impact in any way its ability to fulfill the requirements of this Contract.

☒ He or she is authorized to make the foregoing statements on behalf of the Vendor.

Note: This shall constitute a continuing certification and Vendor shall notify the Contract Lead within 30 days of any material change to any of the representations made herein.

If any one or more of the foregoing boxes is NOT checked, Vendor shall explain the reason(s) in the space below. Failure to include an explanation may result in Vendor being deemed non-responsive and its submission rejected in its entirety.

Signature

Date

Printed Name

Title

[This Certification must be signed by an individual authorized to speak for the Vendor]



ATTACHMENT H: VENDOR REQUEST FOR EO50 PRICE MATCHING

Solicitation #:

10-IFB-389713167-KMM

Vendor Name:

NC Farm to School Cooperative

Pursuant to G.S. 143-59 and Executive Order No. 50 (2010), a North Carolina resident Vendor may receive the opportunity to obtain a contract award by agreeing to match the final price(s) of the lowest Vendor, if the lowest price is offered by a non-resident Vendor. This opportunity arises when a North Carolina resident Vendor offers a price that is within five percent (5%) or \$10,000 (whichever is less) of the non-resident Vendor's overall lowest price. Requesting a price matching opportunity below does not require a resident Vendor to match the lowest price in the event the Vendor qualifies for the opportunity.

The following sections shall be completed if a resident Vendor is requesting a price matching opportunity:

PART I – EO50: Resident Bidder Determination

Vendor shall check the applicable boxes below. In order to be considered for the price-matching opportunity under Executive Order #50 and G.S. 143-59(c)(1), Vendor must meet the definition of a "Resident Bidder."

By submitting this form, the Vendor certifies that:

- ☒ it has paid unemployment taxes to the State of North Carolina for the most recent quarter or annually and has specifically done so for the last such payment period.
- ☒ it has paid income taxes to the State of North Carolina each calendar quarter, or otherwise annually, and has specifically done so for the last such payment period.

PART II – EO50

I certify that the Vendor's principal place of business is located in North Carolina. Principal place of business is defined as the principal place from which the trade or business of the Vendor is directed or managed.

A. Provide address of principal place of business:

7802 Sadie Road

Street Address (no P.O. Box number)

Kerby N.C. 27542

City, State, Zip Code

Is the above address the location of Vendor's overall headquarters? ☒ YES ☐ NO

If Vendor has a public website, provide the link/address:



ATTACHMENT __: Acknowledgment of COVID-19 Vaccination and Testing Policy

Solicitation #: 10-IFB 389713167 - KMM

Vendor Name: NC Farm to School Cooperative

Executive Order 224, signed by Governor Cooper on July 30, 2021, requires all state employees and contractors who may enter facilities at Cabinet Agencies or other participating State Agencies to provide proof of full vaccination or a negative Covid test result within the last seven (7) days. Contractors must follow the requirements of this policy to ensure that their employees are: (1) fully vaccinated or tested within seven (7) days of entering a State facility, and (2) wearing face coverings where required at State facilities.

New State contracts must ensure that Vendor's employees are complying with these requirements. If a Vendor's employee operates off-site and is never expected to enter State facilities, that employee may be exempted from this requirement.

Vendors must verify that these requirements are being met by their employees. By signing this acknowledgment, Vendor agrees that it will verify that these requirements are met for its employees who may enter any State facilities subject to this policy.

COVID-19 Vaccination

In order to show that an employee is fully vaccinated, the employee may submit any of the following:

1. An original or copy of a COVID-19 Vaccination Record Card issued on the form provided by the U.S. Centers for Disease Control and Prevention ("CDC").
2. A note or receipt signed by a licensed nurse, physician pharmacist, physician's assistant, or other representative of the place where the vaccine was administered. This note or receipt must show at least: (a) the worker's name (b) the name of the healthcare provider administering the vaccine (c) date(s) of vaccination (d) place of vaccination and vaccine product name (i.e., Moderna, Pfizer, or Johnson & Johnson)
3. A printout made by the worker of the worker's record from North Carolina's COVID-19 Vaccine Management System ("CVMS"). For information about accessing CVMS and to register, workers may visit NCDHHS COVID-19 Vaccine Management System Web Portal. SPECIAL NOTE: A worker's vaccine information may not be available in CVMS. Other vaccine management systems (for example, the systems used in other states, or the systems used by pharmacies or other health care providers) may also contain vaccination information.

COVID-19 Testing

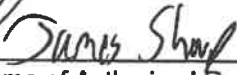
For unvaccinated workers subject to the testing requirement, a negative COVID-19 test dated within the last seven (7) days must be provided prior to entering State facilities. Accepted diagnostic testing includes an antigen or molecular test (nucleic acid amplification test [NAAT] or RT-PCR) authorized by the Food and Drug Administration (FDA). Results must come from a Clinical Laboratory Improvement Amendments (CLIA) certified setting appropriate for the test type (i.e., high, moderate, or waived laboratory). The test result should include name, date of birth, date of specimen collection, date of result, and diagnostic test result. Tests that are taken at home, without being submitted through a laboratory, are not acceptable. COVID-19 antibody tests are not acceptable.

For more information regarding North Carolina's Vaccination and Testing Policy, see COVID-19 Vaccination or Testing FAQs | NC Office of Human Resources.

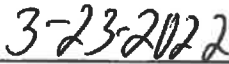
The undersigned hereby certifies that he or she has read this certification, that he or she will comply with the requirements set forth above and that he or she is an officer, member, partner, owner, or other such managing employee of the Vendor (the "Authorized Representative") that is authorized to execute this certification and to bind the Vendor to the certifications, statements, and agreements herein.



Signature



Name of Authorized Representative



Date



Title